

25LBCV01900 25LBCV01900

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS25%2C09%2F10%2F2026

Source SHA-256: 26989d50ae567eaaa4d4826b94aef3c5f7114fa574b82004703fa09d797613ef

Case Number: 25LBCV01900 Hearing Date: September 10, 2026 Dept: S25

Motion: Defendant American Honda Motor Company's Motion for Summary Judgment or, in the Alternative, for Summary Adjudication

Moving Party: Defendant American Honda Motor Company ("Defendant")

Responding Party: Plaintiff Brendon J Forrestal ("Plaintiff")

Tentative Ruling

The Court grants Defendant's request for judicial notice of the complaint. Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.)

California Rules of Court, rule 3.1350(b) states: "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."

Code of Civil Procedure section 1010 also states that: "Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based."

While the Court acknowledges that the notice and separate statement fails to adhere to California Rules of Court, rule 3.1350(b) and the notice fails to comply with Code of Civil Procedure section 1010, the Court will still consider the instant motion.

The Court agrees that a separate statement is required for the opposition. (Code Civ. Proc., § 437b, subd. (c)(3) ["[t]he opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed . . . [f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion"].)

While the Court acknowledges that the opposition fails to adhere to Code of Civil Procedure section 437b, subdivision (c)(3), the Court will still consider the opposition.

Defendant argues that Plaintiff's warranty claims under the Song-Beverly Act are time-barred and that the fraud claim is also time-barred. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") Nos. 1-2) In opposition, Plaintiff asserts that Defendant has not met its initial burden of proving every element of statute of limitations defense. Plaintiff also notes that the complaint concerns a transmission defect which is covered by a five year or 60,000 miles warranty, pointing out that the applicable period ran to approximately July 6, 2022 and the four-year window closed in July 2026. Plaintiff asserts that this action, filed on June 26, 2025, is timely.

First to Third Causes of Action – Song-Beverly Act Violations

The Court notes that the complaint was unverified. Moreover, the Court judicially noticing the complaint does not establish the truth of the matters asserted within it. Even if the Court accepts the allegations in the complaint at face value, the complaint allegations do not establish the delivery date of the Subject Vehicle; instead, the complaint only states that the warranty contract was entered into on or around July 6, 2017. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") Nos. 1-3; Compl., ¶ 6.) Next, Defendant has not met its initial burden of establishing the statute of limitations has passed. Even if the Court assumes July 6, 2017 was the delivery date of the Subject Vehicle, an argument can be made as to which warranty, the New Vehicle Limited Warranty or the Powertrain Limited Warranty, applies. The instant motion is DENIED as to these causes of action.

Fourth Cause of Action – Breach of Implied Warranty of Merchantability

"(2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Cal. U. Com. Code, § 2725, subds. (1)-(2).) The statute of limitations on a claim for breach of an implied warranty of merchantability is four years. (Montoya v. Ford Motor Co. (2020) 46 Cal.App.5th 493, 495.)

As stated in the above section, the unverified complaint does not allege the delivery date of the Subject Vehicle. Defendant has not met its initial burden of establishing the statute of limitations has passed. The instant motion is DENIED as to this cause of action.

Fifth Cause of Action – Fraudulent Inducement- Concealment

Code of Civil Procedure section 338, subdivision (d) provides for a three-year statute of limitations for fraud. The unverified complaint does not allege the delivery date of the Subject Vehicle. Defendant has not met its initial burden of establishing the statute of limitations has passed. The instant motion is DENIED as to this cause of action.

Defendant American Honda Motor Company's Motion for Summary Judgment or, in the Alternative, for Summary Adjudication is DENIED.